



CHAPTER iv.

An Act to amend the charter and enlarge the powers of the Governesses Benevolent Institution. A.D. 1913

[4th July 1913.]

WHEREAS by Royal Charter dated the fourth day of November one thousand eight hundred and forty-eight (hereinafter referred to as “the charter”) an institution (in this Act referred to as “the Institution”) was constituted and incorporated into a body politic and corporate by the name and style of “The Governesses Benevolent Institution” as in the charter set forth:

And whereas in the charter it is recited (inter alia) that
“ in the year 1843 certain benevolent persons with the view of
“ remedying the existing evils in female education and of
“ removing them in future and of benefiting governesses in
“ general did form themselves into an association or society
“ called ‘The Governesses Benevolent Institution’ ”:

And whereas by the charter it is provided (inter alia) that
the Institution “shall have perpetual succession and at all times
“ hereafter shall be able and capable in law notwithstanding
“ the Statute of Mortmain as well to hold and enjoy to them
“ and their successors all and singular the real and personal
“ estates and effects now belonging to the said society or vested
“ in any person or persons in trust for the purposes of such
“ society as also to purchase acquire have take hold receive
“ and enjoy to them and their successors in perpetuity or for
“ any terms of lives or years or other estate any messuages lands
“ tenements rents possessions hereditaments of what nature or
“ kind soever being for the use and purposes of such Institution

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A.D. 1913. “ Provided nevertheless that the value of such messuages
“ lands tenements rents possessions and hereditaments for the
“ time being belonging to the said society shall not exceed in
“ the whole the sum of £50,000 ” And also that the said
society “ shall from time to time hold receive and enjoy to them
“ and their successors any messuages lands tenements and
“ hereditaments Provided nevertheless that all such messuages
“ lands tenements and hereditaments be subject to equity of
“ redemption and that the yearly value of the same shall not
“ exceed in the whole at any one time the sum of £10,000
“ computing the same at the rackrent at the time of the
“ purchase or acquisition thereof And also from time to time
“ to hold receive and enjoy any land messuages tenements rents
“ possessions and hereditaments by devise to them and their
“ successors in perpetuity provided the value of the same for
“ the time being belonging to the said society shall not exceed
“ in the whole the sum of £10,000 and the society shall also at
“ all times hereafter be able and capable in law to purchase
“ acquire have take hold receive and enjoy to them and their
“ successors all manner of goods chattels and things whatsoever
“ of what nature or value soever which they may think requisite
“ for the purposes of the said society ”:

And whereas the objects of the Institution have been carried out in particular by granting free annuities to aged governesses by providing homes for governesses by rendering assistance to governesses in periods of distress by providing governesses with engagements free of expense and by assisting governesses to secure annuities upon their own payments:

And whereas the Institution is now possessed of a governesses' home at Chislehurst in the county of Kent and in Harley Street in the county of London and a holiday home at Shanklin in the Isle of Wight:

And whereas the income of the Institution has largely increased and its invested funds now amount to nearly three hundred thousand pounds and the operations and charitable work of the Institution have also increased to a very large extent:

And whereas the value of the lands belonging to the Institution will shortly approach and the annual value of the lands at present mortgaged to the Institution already approach

the sums respectively which under the charter cannot be exceeded but doubts have arisen as to the exact meaning and effect of the restriction imposed on the amount of lands mortgaged to the Institution: A.D. 1913.

And whereas in order that the work and operations of the Institution may be facilitated and extended it is expedient that the Institution should be empowered to hold lands and to lend money on mortgage of lands to such extent as is by this Act provided:

And whereas excepting the restrictions on the taking of mortgages on lands no limitation on the powers of investment of the funds of the Institution is prescribed by the charter but it is apprehended that without express provision to the contrary the powers of the Institution may be limited to the making of investments in securities authorised by law for investment by trustees and it is therefore expedient that the Institution should be expressly empowered to invest its funds in certain securities other than those authorised by law for investment by trustees:

And whereas the objects aforesaid cannot expediently be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited for all purposes as the *Short title.*
Governesses Benevolent Institution Act 1913.

2. Notwithstanding anything contained in the charter— *Amendment of charter.*

(A) The value of the messuages lands tenements rents possessions and hereditaments for the time being belonging to the Institution may exceed the sum of fifty thousand pounds but shall not exceed in the whole the sum of one hundred thousand pounds Provided that the Institution shall not hold any such messuages lands tenements rents possessions or hereditaments otherwise than for the purposes of or in connection with the work of the Institution but nothing herein contained shall prejudice or

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affect the right of the Institution to foreclose any mortgage held by them :

- (B) The yearly value of the messuages lands tenements and hereditaments comprised in mortgages or charges held by the Institution may exceed the sum of ten thousand pounds but shall not exceed in the whole at any one time the sum of fifty thousand pounds computing the same respectively at the rackrent thereof at the respective times of the granting of the mortgages or charges to the Institution or the acquisition thereof by the Institution Provided that for the purposes of paragraph (A) of this section any such messuages lands tenements and hereditaments of which the equity of redemption is afterwards acquired by the Institution shall as from such acquisition be taken into account as lands for the time being belonging to the Institution.

Power of
investment.

3. The Institution may from time to time invest any moneys in its hands (and requiring investment) in the stocks funds or securities of the United Kingdom or any British colony or dependency or of any foreign country or state or any municipal or other public corporation or in the bonds debentures debenture stock guaranteed or preference stock or guaranteed or preference shares (not being securities to bearer or transferable by mere endorsement and delivery) of any railway dock canal harbour gas water tramway electric light or power company incorporated or carrying on business in the United Kingdom or in any British colony or dependency or any foreign country or state having during each of seven years last past before the date of investment paid a dividend at the rate of not less than five per centum per annum on its ordinary stock and so that not more than the sum of ten thousand pounds shall be invested in securities stocks or shares of any one company incorporated outside the United Kingdom or its colonies or dependencies and may from time to time vary such investments into or for others of the same or like nature Provided nevertheless that the Institution may allow any money or investments which it may receive or to which it may be or become entitled (not being securities to bearer or transferable by mere endorsement and delivery) to remain in the actual state of investment in which

it receives the same or in which the same are when it becomes A.D. 1913.
entitled thereto and for so long as it in its discretion thinks fit.

4. The costs charges and expenses of and incidental to the Costs of Act.
preparing applying for obtaining and passing of this Act shall
be borne and paid by the Institution out of its general funds.

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